Related Topic/Issue : Right to fly the national flag

Related Article/Schedule : 19

Supreme Court Judgement: It held that the right to fly the national flag freely with respect and dignity is a fundamental right of a citizen within the meaning of the freedom of speech and expression guaranteed by Article 19(1)(a). This right is an expression and manifestation of a citizen's allegiance and feelings and sentiments of pride for the nation. However, it cannot be used for commercial purpose or otherwise.

Prakash Singh Case (2006)

Name of the Case : Prakash Singh vs. Union of India

Year of Judgement : 2006

Popular Name : —

Related Topic/Issue : Police reforms

Related Article/Schedule : —

Supreme Court Judgement: It issued seven directives to the central government, state governments and union territories aimed at bringing in police reforms to ensure that the police machinery functions without any political interference. These are: (i) constitution of a State Security Commission; (ii) Selection of the DGP from amongst the three senior-most officers empanelled by the UPSC for the post and a minimum tenure of two years for the DGP, (iii) a minimum tenure of two years also for the police officers on operational duties, (iv) separation of the investigation police from the law and order police, (v) setting up a Police Establishment Board, (vi) setting up Police Complaints Authority at state and district levels, and (vii) setting up a National Security commission at the central level.

Impact of the Judgement: This judgement led to the introduction of police reforms in the country but only partially and not fully. Also, it could not eliminate the political interference in the functioning of the police system, especially in the postings and transfers. Although State Security Commissions and Police Establishment Boards have been set-up in most of the states, they are not very effective in their functioning and lack the authority to make binding recommendations. However, in various cases, the High Courts have issued orders asking the statement governments to comply with the above directives of the Supreme Court.

M. Nagaraj Case (2006)

Name of the Case : M. Nagaraj vs. Union of India

Year of Judgement : 2006

Popular Name : —

Related Topic/Issue : Reservation in promotions for SCs and STs